

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Constantinos Stivaros	Team: Team # 2	CCRB Case #: 201016455	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 11/27/2010 11:14 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 5/27/2012		Precinct: 44	
Date/Time CV Reported Tue, 11/30/2010 8:46 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 11/30/2010 8:46 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM John Kim	04935	947133	PBBX
2. SGT Albert Rodriguez	02441	933532	PBBX

Officer(s)	Allegation	Investigator Recommendation
A . SGT Albert Rodriguez	Abuse: Sgt. Albert Rodriguez entered and searched § 87(2)(b) in the Bronx.	A . Complaint Withdrawn
B . POM John Kim	Abuse: PO John Kim seized § 87(2)(b)'s property.	B . Complaint Withdrawn
C . SGT Albert Rodriguez	Abuse: Sgt. Albert Rodriguez seized § 87(2)(b)'s property.	C . Complaint Withdrawn
D . POM John Kim	Abuse: PO John Kim entered and searched § 87(2)(b) in the Bronx.	D . Complaint Withdrawn

Case Summary

On November 30, 2010, § 87(2)(b) called the CCRB to file a complaint. On November 27, 2010 at § 87(2)(b)'s apartment at § 87(2)(b) in the Bronx, three individuals named § 87(2)(b), § 87(2)(b), and § 87(2)(b) were present at his apartment. Two uniformed officers who § 87(2)(b) identified by name during his intake recording as Mr. Kim and Sergeant Rodriguez from the 44th Precinct came to the apartment and arrested § 87(2)(b), § 87(2)(b), and § 87(2)(b) for § 87(2)(b). The officers also took objects, including cell phones from § 87(2)(b)'s apartment. The officers then left the scene with the three prisoners. § 87(2)(b) said he was familiar with the three individuals and they were not trespassing.

On December 2, 2010, the first please call letter was sent to the residence of § 87(2)(b). Between December 2, 2010 and December 6, 2010, two calls were placed to § 87(2)(b) and voicemails were left. On December 7, 2010, first contact was established with § 87(2)(b). He called the CCRB and requested to withdraw his complaint. He stated that he only wanted his cell phones back and now that he has gotten them back from the NYPD, he no longer wants to pursue the complaint. § 87(2)(b) was not coerced by the NYPD or CCRB into withdrawing his complaint and he is withdrawing of his own free will. On December 7, 2010, a withdrawal form was mailed to the residence of § 87(2)(b) and will be added to the case file upon receipt. Team Manager McCormick reviewed the withdrawal tape. It is recommended that the case be closed as “*complaint withdrawn*.”

Team: _____

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Investigator: _____
Signature _____ Print _____ Date _____

Supervisor: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____
Title/Signature _____ Print _____ Date _____